

**TENTATIVE RULINGS FOR SEPTEMBER 24, 2026**  
**Department R17**  
**BEFORE THE HONORABLE JANET M. FRANGIE**  
**(sitting on assignment)**

This Court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings are posted on the court's website after 3:00 p.m. the day before the hearing at <https://www.sb-court.org/divisions/civil/civil-tentative-rulings>.

You may appear in person or by remote appearance at the hearing. (See [www.sb-court.org/general-information/remote-access](http://www.sb-court.org/general-information/remote-access) ) If you do not have Internet access you may obtain the tentative ruling by calling (909) 285-3753 or telephoning the department at 909-285-3732.] If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 p.m. the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling and be prepared to address those issues set forth by the court in its ruling.

**UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF RULING**

| CASE NUMBER  | CASE NAME                                               | TYPE OF HEARING                           |
|--------------|---------------------------------------------------------|-------------------------------------------|
| CIVRS2508504 | <i>Nashwan A. al Wakeel v. Alaaldin Almuzian, et al</i> | Defendants' Demurrer and Motion to Strike |

**Tentative Ruling:**

**DEMURRERS:**

1. First Cause of Action for Willful Misclassification

The demurrer is sustained, **without leave to amend**. Should Plaintiff decide to amend based on the other demurrers these allegations may be alleged as *general* allegations, but they do not constitute a viable cause of action alone.

2. All Causes of Action as to Defendant Almuzian

The demurrer is overruled. Under *Martinez v. Combs* (2010) 49 Cal.4th 35, 64, "the IWC's definition of employment incorporates the common law definition as *one alternative*. As defined in the wage orders, "[e]mployer' means any person ... who ... *employs* or exercises control over the wages, hours, or working conditions of any person," and "[e]mploy' means to *engage*, suffer, or permit to work.' [Citations.]" (Emphasis in original.)

Further, Labor Code Section 558.1 provides that:

(a) Any employer or other person acting on behalf of an employer, who violates, or causes to be violated, any provision regulating minimum wages or hours and days of work in any order of the Industrial Welfare Commission, or violates, or causes to be violated, Sections 203, 226, 226.7, 1193.6, 1194, or 2802, may be held liable as the employer for such violation.

(b) For purposes of this section, the term 'other person acting on behalf of an employer' is limited to a natural person who is an owner, director, officer, or managing agent of the employer, and the term 'managing agent' has the same meaning as in subdivision (b) of Section 3294 of the Civil Code.

Here, the FAC alleges that Almuzian "owned, operated, controlled, franchised, leased and/or managed" the Restaurant "during Plaintiff's entire tenure as Defendants' employee." (First Amended Complaint (FAC) ¶ 4.) It also alleges that Almuzian exercised direct operational control over the workplace and Plaintiff's employment conditions such as setting Plaintiff's daily work schedule, and provided the necessary tools, equipment, and supplies for Plaintiff to complete his tasks. (FAC ¶ 13.)

These allegations are sufficient to create a valid claim under the legal theories that Almuzian was Plaintiff's employer and that Almuzian can be held personally liable. Further, the allegations are sufficiently clear to apprise Almuzian of the issues that must be met, even if the allegations of the complaint may not be as clear and as detailed as Almuzian might desire. (*Merlino, supra*, 90 Cal.App.2d at p. 108.) Ambiguities can be clarified under modern discovery procedures. (*Khoury, supra*, 14 Cal.App.4th at p. 616.)

Regarding the alter ego allegations, two conditions must be met before the alter ego doctrine will be invoked. First, there must be such a unity of interest and ownership between the corporation and its equitable owner that the separate personalities of the corporation and the shareholder do not in reality exist. Second, there must be an inequitable result if the acts in question are treated as those of the corporation alone. (*Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538.)

The case, *Leek v. Cooper* (2011) 194 Cal.App.4th 399 (*Leek*), cited by Defendant, is distinguishable. In that case, the court stated the complaint neither specifically alleged alter ego liability, nor alleged facts showing a unity of interest and inequitable result from treatment of the corporation as the sole actor. (*Ibid.*)

But here, Plaintiff has sufficiently alleged both elements of alter ego. Plaintiff alleges that Almuzian exercised complete dominion and control over the Restaurant and used the corporate entity as a conduit for his personal business operations. Plaintiff further alleges that Defendants commingled funds, failed to

adequately capitalize the corporate entity, failed to observe corporate formalities, and used the corporate entity as a shell to avoid liability. (FAC ¶¶ 6-7.) Plaintiff also alleges that if the acts of the Restaurant are treated as of that entity alone, an inequitable result may occur. (FAC ¶ 6.) Thus, Plaintiff has alleged sufficient facts at the initial pleading stage.

3. All Causes of Action Fail to Plead Defendant Specific Conduct

The demurrer is overruled.

Defendants argue that Plaintiff has lumped both Defendants together without identifying which Defendant engaged in which conduct. It specifically cites to the following allegations in the FAC: “Defendants failed to provide meal periods” (FAC ¶ 23.); “Defendants failed to pay overtime” (FAC ¶ 29); “Defendants willfully failed to pay all wages due” (FAC ¶ 33.); “Defendants failed to provide accurate wage statements” (FAC ¶ 36.).

In support of this, Defendants cite *Blank v. Kirwan* (1985) 39 Cal.3d 311. However, the pinpoint citation provided does not discuss the contention that “California law requires pleading of ultimate facts showing each defendant’s participation in the alleged wrongdoing.” (*Id.* p. 318.) Furthermore, Defendants’ reliance on *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, is also misplaced because it involves the pleading requirements of section 340.1, subdivision (b)(2), and whether the doctrine of less particularity applied.

Based on the allegations of the FAC as noted above, Almuzian was acting on behalf of the Restaurant, and under the language of Labor Code Section 558.1, Almuzian may be held liable as the employer for a majority of the Labor Code violation asserted by Plaintiff. Further, Defendants argument that it is difficult from the allegations to conclude what specific conduct occurred by which Defendant is contrary to the allegations of the FAC. The Restaurant cannot act without someone acting on its behalf, which is alleged to be by Almuzian’s actions.

4. Fifth Cause of Action- Itemized Wage Statements

The demurrer is overruled. Under the version of Labor Code Section 226 that was in effect at the time of *Price*, an employee was not injured because an employer failed to provide a wage statement. It required that an employee show a cognizable injury. (*Id.* at p. 1142-44.) The current version of the Labor Code does not require an actual injury. Simply failing to provide wage statements is sufficient. (Labor Code, § 226, subd. (e)(2)(A).) Plaintiff’s allegation that he was not provided with itemized wage statements is sufficient.

5. Sixth Cause of Action- Waiting Time Penalties

The demurrer is sustained, with thirty days leave to amend. Labor Code Section 203 requires that the failure to pay be “willful.” The FAC does not allege that Defendants willfully failed to pay Plaintiff’s full wages upon termination. (FAC ¶¶ 31-32, 42-46.) While Plaintiff is not required to prove that Defendants acted willfully at this stage, he is required to allege it.

## 6. Seventh Cause of Action- Unfair Competition

The demurrer is overruled. The violation of any federal, state, and local law may serve as the predicate for an unlawful practice claim under the UCL. (*Munson v. Del Taco, Inc.* (2009) 46 Cal.4th 661, 676.) Plaintiff's UCL claims is based on Defendants violation of Labor Codes, including failing to provide meal and rest breaks. In addition, the failure to pay required wages, including overtime, falls within the UCL's definition of unlawful business practices. (*Sullivan v. Oracle Corporation* (2011) 51 Cal.4th 1191, 1194, 1206.) Finally, any issues related to relief Plaintiff seeks is not appropriate to address on a demurrer, but rather on a motion to strike. A demurrer only seeks to determine whether the facts alleged are sufficient, not the relief.

### **MOTION TO STRIKE:**

Defendants seek to strike the following allegations from the FAC:

- 1) Page 6, Lines 25–28 [General Allegations at ¶ 6]: “all of these violations of the Labor Code and regulations are criminal misdemeanors pursuant to Labor Code Sections 215, 216, 225, 226.6, 553, 1199 and 1199.5.”
- 2) Page 7, Lines 6–8 [General Allegations at ¶ 7]: “and would sanction crimes as stated herein above, fraud and/or promote injustice”
- 3) Page 10, Lines 21–24 [1st COA at ¶ 16]: “Defendants allegedly committed payroll tax fraud against the United States government and the Franchise Tax Board of the State of California.”
- 4) Page 17, Lines 11–13 [5th COA at ¶ 39]: “Accordingly, Plaintiff is each entitled to the penalty set forth in California Labor Code Section 226 in the approximate amount of up to \$4,000.00 per Plaintiff.”
- 5) Page 20, Lines 5–6 [7th COA at ¶ 20]: “criminally”
- 6) Page 20, Lines 19–22 [7th COA at ¶ 20]: “Each of these violations of the Labor Code and regulations by Defendants and each of them are criminal misdemeanors pursuant to California Labor Code sections 215, 216, 225, 226.6, 553, 1199 and 1199.5.”
- 7) Page 22, Lines 6–10 [7th COA at ¶ 50]: “Defendants, and each of them, should therefore be ordered to restore to Plaintiff all unpaid wages at the time of termination, including any and all overtime compensation improperly withheld from Plaintiff in addition to statutory penalties and interest.”
- 8) Page 22, Lines 23–25 [Prayer ¶ 5]: “For violation of California Labor Code Section 226 penalties in the amount of \$4,000.00.”

**Numbers 1-3, 5-6:** Defendants argue that such allegations are irrelevant, improper, and inflammatory criminal allegations. Plaintiff responds that some allegations raised in the FAC show the consequences of failing to comply with the Labor Code and that these consequences show context.

Here, these allegations are construed as offering context and background, and are not demonstrated to be irrelevant, improper, or false.

Therefore, the motion to strike Numbers 1-3, 5-6 is **DENIED**.

**Numbers 4 and 8:** Defendants argue that the allegations and prayer related to penalties under Labor Code section 226 is improper and not in conformity with California law, unless the FAC pleads statutory injury. As discussed in the demurrer, Plaintiff met the pleading requirements for Labor Code Section 226, subdivision (e) cause of action.

Therefore, the motion to strike Numbers 4 and 8 is **DENIED**.

**Number 7:** Defendant argues that it is improper to the extent that it seeks non-restitution penalties. In the FAC, Plaintiff seeks “all over time compensation” in addition to “statutory penalties and interest.” As discussed with the demurrer, failure to pay wages falls within the UCL. But to the extent Plaintiff seeks “statutory penalties and interest,” grant the motion as such recovery is not demonstrated to constitute restitution.

Therefore, the motion to strike request Number 7 is **GRANTED in PART** as to “statutory penalties and interest”.

Moving party is directed to give notice of ruling.